Your rights over personal data

Chapter 3 of the GDPR, explained article by article (art. 12–23)

DRAFT. 0 of 62 lines in this document have been approved by a lawyer. Not for publication yet.

This document explains the law in plain language. It is not the law itself, and it cannot tell you how the law applies to your situation. The numbers in brackets are the articles of the law.

- This chapter gives people rights over their personal data and sets out what organisations that use this data must tell them and do. (art. 12, art. 13, art. 14, art. 15, art. 16, art. 17, art. 18, art. 19, art. 20, art. 21, art. 22, art. 23)
- An organisation that uses personal data (the controller) must give information and answers clearly, simply, briefly and in an easily accessible way. It must help you exercise your rights. (art. 12)
- If the organisation collects data directly from you, it must immediately tell you who it is, why it uses the data, its basis for doing so, how long it keeps it, who it shares it with, and what rights you have. It must also explain transfers outside the EU, automated decisions and profiling, where these apply. (art. 13)
- If the organisation gets your data from another source, it must also tell you what data it uses and where it came from. It must usually do this within one month, or earlier at first contact or first sharing. Exceptions apply, for example if you already have the information or a law requires secrecy. (art. 14)
- You may ask whether an organisation uses your personal data. If it does, you may see the data and important information about it, and receive a copy. The organisation may charge a reasonable fee for extra copies. (art. 15)
- You may ask for incorrect data to be corrected quickly and incomplete data to be completed. In certain cases, you may ask for data to be erased or its use to be restricted. When use is restricted, the organisation may only use the data, apart from storing it, in limited cases. (art. 16, art. 17, art. 18)
- Erasure is not required where use is needed, among other things, for freedom of expression and information, a legal duty, a task in the public interest, certain research, or a legal claim. Recipients of the data must normally be told about correction, erasure or restriction. (art. 17, art. 19)
- Where the conditions are met, you may receive data you provided in a commonly used, machine-readable format and move it to another organisation. You may object to certain use because of your situation. For direct marketing, the organisation must stop once you object. (art. 20, art. 21)
- You must not be subject to a decision made only by automated processing that affects you legally or significantly. Exceptions exist where this is necessary for a contract, a law allows it and provides safeguards, or you give explicit consent. For a contract or your explicit consent, safeguards must exist, including human intervention, stating your view and challenging the decision. (art. 22)
- The organisation must usually answer your request within one month. It may extend the time by another two months for complex or numerous requests, but must tell you within one month. Requests are free, except where they are manifestly unfounded or excessive: it may then charge a reasonable fee or refuse the request. An EU or Member State law may limit these rights only under strict conditions. (art. 12, art. 23)

Clear help with your privacy rights (art. 12)

- An organisation that uses your personal data must give information and answers clearly, briefly and in an easily accessible way. The language must be simple, especially for information aimed at children.
- Information must be given in writing or by another means, including electronically where appropriate. You may ask for oral information, but the organisation may first require proof of your identity.
- The organisation must make it possible for you to exercise your rights. In the cases in Article 11(2), it may refuse a request because it cannot identify you only if it can show that this is the case.
- The organisation must say what it has done with your request without undue delay and at the latest within one month. For complex or numerous requests, it may extend this by two months, but it must tell you within the first month.
- Information and measures are free. For requests that are clearly unfounded or excessive, especially repeated requests, the organisation may charge a reasonable fee or refuse; it must show this.

Information when data comes directly from you (art. 13)

- When an organisation collects personal data directly from you, it must explain how it uses them when collecting them.
- It gives its name and contact details and, where needed, those of its representative and data protection officer. It states the purpose, legal basis and, where applicable, legitimate interests.
- You must be told who receives your data, how long it is kept, whether it goes to a third country or international organisation, and what protection applies.
- The organisation tells you about your rights, including access, correction, erasure, restriction, objection, portability and complaining. Where consent is used, it says that you may withdraw it at any time.
- It says whether you must provide data by law or contract, what happens if you do not, and whether automated decisions are made. For a new purpose, it informs you beforehand unless you already know this.

Information when data comes from another source (art. 14)

- When an organisation does not get your personal data directly from you, it must inform you about its use and source.
- It gives its name and contact details and, where needed, those of its representative and data protection officer. It states the purpose, legal basis, types of data and, where applicable, legitimate interests.
- You must be told who receives the data, how long it is kept, whether it goes to a third country or international organisation, what protection applies, and which rights you have, including complaining.
- It states the source, including whether it is public, and gives information about automated decisions, including profiling, and their expected effects.
- The information is given within a reasonable time, at the latest within one month. If it contacts you or discloses data to another, this happens at first contact or first disclosure at the latest.
- It need not inform you if you already know this, it is impossible or involves disproportionate effort, the law provides for it with protection, or professional secrecy applies. Where impossible or disproportionate, appropriate protective measures are needed, including making information public.

Your right to see your data (art. 15)

- You may ask whether an organisation uses personal data about you. If it does, you may see that data and receive information about its use.
- The organisation tells you why it uses the data, what data it has, who receives it, how long it keeps it and, if it did not get it from you, available information about the source.
- You also receive information about your rights to correction, erasure, restriction, objection and complaining. For automated decisions, the organisation explains how they work and their expected effects.
- You have the right to a copy. Additional copies may cost a reasonable fee; for an electronic request, you normally receive the information in a commonly used electronic form.
- A copy must not harm others' rights and freedoms. If data is transferred to a third country or international organisation, you may ask about appropriate safeguards.

Your right to have data corrected (art. 16)

- You may ask an organisation to correct inaccurate personal data about you without undue delay. You may also have incomplete data completed, for example by providing an additional statement.

Your right to have data erased (art. 17)

- You may ask an organisation to erase your personal data without undue delay. It must do so when the data is no longer needed, has been used unlawfully, or must be erased by law.
- You may also ask for erasure when you withdraw consent and there is no other legal basis, or when your objection succeeds. This also applies to certain online services for children.
- If the organisation made your data public and must erase them, it takes reasonable steps, considering technology and costs, to inform other organisations processing the data about your request, including regarding links, copies and reproductions.
- Erasure is not required where processing is necessary for freedom of expression and information, a legal duty, the public interest or official authority.
- Nor is it required where processing is necessary: for public health, archiving in the public interest, scientific or historical research, statistics or legal claims; for archiving, research and statistics, erasure must seriously undermine the purposes.

Your right to restrict the use of data (art. 18)

- You may ask an organisation to restrict the use of your personal data. It may still store the data, but other use is generally not allowed.
- This can apply when you dispute accuracy while the organisation checks it, or for unlawful use if you want restriction instead of erasure.
- You may request restriction if the organisation no longer needs the data but you need it for legal claims, or after you object while interests are still being weighed.
- During restriction, use is allowed only with your consent, for legal claims, to protect others or for important reasons of public interest. The organisation informs you before lifting it.

Informing others about correction, erasure or restriction (art. 19)

- An organisation informs recipients when data has been corrected, erased or restricted, unless this is impossible or involves disproportionate effort.
- On request, it tells you which recipients received the data.

Your right to take your data with you (art. 20)

- You may receive data you provided in a structured, commonly used and machine-readable format, and pass it to another organisation.
- This applies only to processing based on your consent or a contract with you, and carried out by automated means.
- If technically possible, you may ask for direct transmission between organisations.
- This does not limit your right to erasure and does not apply to tasks in the public interest or official authority.
- Taking data with you must not harm others' rights and freedoms.

Your right to object (art. 21)

- Because of your particular situation, you may always object to use of your data for the public interest, official authority or a legitimate interest, including profiling.
- After your objection, the organisation must stop unless its compelling legitimate grounds outweigh your interests, rights and freedoms, or the data is needed for legal claims.
- You may always object to direct marketing, including profiling for that purpose. Afterwards, your data may no longer be used for it.
- The organisation must clearly draw your attention to these rights separately, at the latest when it first contacts you. For online services, you may object through automated means using technical specifications.
- For scientific or historical research or statistics under the applicable special rules, you may object unless processing is necessary for the public interest.

Decisions made only by a system (art. 22)

- You have the right not to be subject to a solely automated decision, including profiling, with legal or other significant effects on you.
- Such a decision may be made if necessary for a contract, allowed by applicable EU or national law with appropriate protection, or based on your explicit consent.
- For a decision for a contract or based on your explicit consent, the organisation provides appropriate protection: human intervention, stating your view and challenging the decision.
- These decisions must not be based on special categories of personal data, except with explicit consent or a substantial public interest, with appropriate protection.

Legal limits on privacy rights (art. 23)

- EU law or the law of a Member State may limit duties and rights concerning personal data, but only if the core of fundamental rights and freedoms remains protected.
- A restriction must be necessary and proportionate in a democratic society. It may serve national security, defence, public security, criminal law tasks or penalties.
- It may also serve other important public-interest objectives, such as economic or financial interests, public health, social security, judicial independence, supervision, others' rights and civil claims.
- Where appropriate, the law must clearly state why data is used, what data is involved and how far the restriction goes. It must contain safeguards against abuse and unlawful access or disclosure.
- Where appropriate, the law must also state who uses the data, retention periods, risks and safeguards. It must provide information about the restriction unless that harms its purpose.

Official text: https://eur-lex.europa.eu/legal-content/NL/TXT/?uri=CELEX:32016R0679
Written with AI from the official legal text, checked line by line, and reviewed by lawyers.